SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	51

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W9123727QA008	10 NOV 2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	ELLEC ROBINETTE	304-399-5226	04 DEC 2026 12:00 PM

9. ISSUED BY	CODE	10. THIS ACQUISITION IS
W072 ENDIST HUNTINGTON KO CONTRACTING OFFICE, 502 EIGHTH STREET HUNTINGTON, WV 25701-5000 UNITED STATES ELLEC ROBINETTE, EMAIL: ELLEC.T.ROBINETTE@USACE.ARMY.MIL TELEPHONE: 304-399-5226	W91237	☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561730 SIZE STANDARD: USD 9,500,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO	CODE	16. ADMINISTERED BY	CODE
SEE SCHEDULE			

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NUMBER				

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT *(For Government Use Only)*
SEE SECTION G - CONTRACT ADMINISTRATION DATA	

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS: SEE SCHEDULE

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*	
30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Section A - Solicitation/Contract Form

Instrument Name: JWF/NFP Maintenance Service 2027 - 2031

Product Service Code : S208

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	BASE PERIOD - Date of Award- 31 Dec 2027 Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise noted in the Performance Work Statement, required to perform the Mowing and Maintenance Services for John W. Flannagan Dam Reservoir and North Fork of Pound River Lake, VA. All work shall be completed in accordance with the Performance Work Statement and terms and conditions of the contract. The not-to-exceed amount of $3,000,000.00 includes the base year and all options exercised. Product Service Code: S208 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1001	OPTION ONE - 1 Jan 2028 - 31 Dec 2028 Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise noted in the Performance Work Statement, required to perform the Mowing and Maintenance Services for John W.	1	Job		

	Flannagan Dam Reservoir and North Fork of Pound River Lake, VA. All work shall be completed in accordance with the Performance Work Statement and terms and conditions of the contract. The not-to-exceed amount of $3,000,000.00 includes the base year and all options exercised. Product Service Code: S208 Pricing Arrangement: Firm Fixed Price				
Option Line Item 2001	OPTION TWO - 1 Jan 2029 - 31 Dec 2029 Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise noted in the Performance Work Statement, required to perform the Mowing and Maintenance Services for John W. Flannagan Dam Reservoir and North Fork of Pound River Lake, VA. All work shall be completed in accordance with the Performance Work Statement and terms and conditions of the contract. The not-to-exceed amount of $3,000,000.00 includes the base year and all options exercised. Product Service Code: S208 Pricing Arrangement: Firm Fixed Price	1	Job		

Option Line Item 3001	OPTION THREE - 1 Jan 2030 - 31 Dec 2030 Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise noted in the Performance Work Statement, required to perform the Mowing and Maintenance Services for John W. Flannagan Dam Reservoir and North Fork of Pound River Lake, VA. All work shall be completed in accordance with the Performance Work Statement and terms and conditions of the contract. The not-to-exceed amount of $3,000,000.00 includes the base year and all options exercised. Product Service Code: S208 Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 4001	OPTION FOUR - 1 Jan 2031 - 31 Dec 2031 Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise noted in the Performance Work Statement, required to perform the Mowing and Maintenance Services for John W. Flannagan Dam Reservoir and North Fork of Pound River Lake, VA. All work shall be completed in accordance with the Performance Work Statement and terms and conditions of the contract. The not-	1	Job		

	to-exceed amount of $3,000,000.00 includes the base year and all options exercised. Product Service Code: S208 Pricing Arrangement: Firm Fixed Price				

Section C - Description/Specifications/Statement of Work

Requirements

See Performance Work Statement. This is a combined synopsis/solicitation for commercial services prepared in accordance with Revolutionary Federal Acquisition Overhaul (RFO) Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued. Solicitation number W91223727QA008 is issued as a RFQ for Mowing and Maintenance Services at John W. Flannagan Dam and North Fork of Pound Lake . This acquisition is a total set-aside for small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See attached Performance Work Statement for additional information. DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: See attached Performance Work Statement for additional information. DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: See attached Performance Work Statement for additional information.

	DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: See attached Performance Work Statement for additional information. DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: See attached Performance Work Statement for additional information. DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS

Section F - Deliveries or Performance

0001	**Delivery Schedule** Delivery Period From 01 Jan 2027 to 31 Dec 2027 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS Email: Jaren.S.Owens@usace.army.mil Telephone: 276-835-9544 **Period of Performance** From 01 Jan 2027 To 31 Dec 2027
Option Line Item 1001	**Delivery Schedule** Delivery Period From 01 Jan 2028 to 31 Dec 2028 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES

	JAREN S. OWENS Email: Jaren.S.Owens@usace.army.mil Telephone: 276-835-9544 **Period of Performance** From 01 Jan 2028 To 31 Dec 2028
Option Line Item 2001	**Delivery Schedule** Delivery Period From 01 Jan 2029 to 31 Dec 2029 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS Email: Jaren.S.Owens@usace.army.mil Telephone: 276-835-9544 **Period of Performance** From 01 Jan 2029 To 31 Dec 2029
Option	**Delivery Schedule**

Line Item 3001	Delivery Period From 01 Jan 2030 to 31 Dec 2030 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS Email: Jaren.S.Owens@usace.army.mil Telephone: 276-835-9544 **Period of Performance** From 01 Jan 2030 To 31 Dec 2030
Option Line Item 4001	**Delivery Schedule** Delivery Period From 01 Jan 2031 to 31 Dec 2031 **Quantity** 1 Job **Address and POC** Place of Performance DoDAAC: 963375 CountryCode: USA USACE LRD JOHN W FLANNAGAN DAM, 192 WHITE WATER ROAD HAYSI, VA 24256 UNITED STATES JAREN S. OWENS Email: Jaren.S.Owens@usace.army.mil

	Telephone: 276-835-9544 **Period of Performance** From 01 Jan 2031 To 31 Dec 2031

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government.	2020-06		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02		

52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02

52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0040, Revision 1)	2026-04
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements. (Deviation 2026-O0038)	2026-02
52.232-33	Payment by Electronic Funds Transfer-System for Award	2018-10

	Management.	
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		

252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7022	Expediting Contract Closeout.	2021-05		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01		
252.232-7010	Levies on Contract Payments.	2006-12		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.240-7992	Prohibition on the Transfer of	2026-09	Deviation	2026-09

	Certain Data of Department of Defense Employees to Third Parties. (DEVIATION 2026-O0025)		2026-O0025	
252.240-7994	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2026-O0025)	2026-09	Deviation 2026-O0025	2026-09
252.240-7995	Prohibition on Contract Awards with Entities That Contract with Lobbyists for Chinese Military Companies--Representation. (DEVIATION 2026-O0025)	2026-09	Deviation 2026-O0025	2026-09
252.240-7996	Prohibition on Contract Awards to Chinese Military Companies--Representation. (DEVIATION 2026-O0025)	2026-09	Deviation 2026-O0025	2026-09
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	2026-02	Deviation 2026-O0025	2026-02
252.243-7002	Requests for Equitable Adjustment.	2022-12		
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	2026-02	Deviation 2026-O0015	2026-02
252.247-7023	Transportation of Supplies by Sea.	2024-10		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.216-18	Ordering. (Tailored)	2020-08		

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 1 January 2027 through 31 December 2031.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19	Order Limitations.	1995-10		

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than $5,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of $3,000,000.00;

(2) Any order for a combination of items in excess of $3,000,000.00; or

(3) A series of orders from the same ordering office within TEN (10) days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.,* includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within FIVE (5) days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22	Indefinite Quantity. (Deviation 2026-O0038) (Tailored)	2026-02

Indefinite Quantity (Feb 2026) (Deviation 2026-O0038)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the

end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after the completion date of the order.

(End of clause)

52.217-8	Option to Extend Services.	1999-11

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within thirty (30) calendar days prior to expiration of the contract.

(End of clause)

52.217-9	Option to Extend the Term of the Contract.	2000-03

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within thirty (30) calendar days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least sixty (60) calendar days days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of clause)

52.219-14	Limitations on Subcontracting.	2026-02

(Deviation 2026-O0038)

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the

prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

X - By the end of the base term of the contract and then by the end of each subsequent option period; or

By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28	Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038)	2026-02

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document /support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award

Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under 561730NAICS Code assigned to W9123726QA086contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it [ ] is, [ ] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) HUBZone joint venture eligible under the HUBZone Program.[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It [ ] is, [ ]

is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires. 2014-05

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

(End of clause)

23470	Laborer	WG-2	$16.76
11210	Laborer Grounds Maintenance	WG-3	$18.57
23370	General Maintenance Worker	WG-8	$27.69
11270	Tractor Operator	WG-5	$22.29

23130	Carpenter, Maintenance	WG-9	$29.53
23760	Painter, Maintenance	WG-9	$29.53
23810	Plumber, Maintenance	WG-9	$29.53
23160	Electrician, Maintenance	WG-10	$30.98
31360	Truckdriver, Light	WG-6	$24.10
31362	Truckdriver, Heavy	WG-7	$25.94

52.252-2 Clauses Incorporated by Reference. 1998-02

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

https://acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52 ____ ____
[Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses. 2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement[insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J - List of Attachments

Identifier	Document Name	Document Description	Document Type	Provided Under Separate Cover
0001	A.02.11 PWS	Performance Work Statement	Attachment	No
0002	A.03.09 Exhibits - (SECTION J Exhibits A-E)	Exhibits	Attachment	No
0003	A.03.09 Exhibits - (Section J Exhibits F-Q)	Exhibits	Attachment	No
0004	B.04.30 SCA Wage Determination 2015-4317 REV 36	Wage Determination	Attachment	No
0005	A.02.11 Past Performance Questionnaire (PPQ) Form	PPQ Form	Attachment	No
0006	A.02.11 Price Breakout Schedule	Price Breakout Schedule	Attachment	No

*** END OF NARRATIVE 1 ***

Section K - Representations, Certification, & Other Statements

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7031	Secondary Arab Boycott of Israel .	2005-06		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		
252.240-7993	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems--Representation. (DEVIATION 2026-O0025)	2026-09	Deviation 2026-O0025	2026-09

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation. (Deviation 2026-O0038)	2026-02		

Tax on Certain Foreign Procurements-Notice and Representation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It [ ] is [ ] is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 [ ] a full exemption, or [ ] partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS

EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998	Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)	2026-02	Alternate A Deviation 2026-O0043	2026-02 2026-02

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award

Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[ ] (i) Paragraph (g) applies.

[ ] (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

[ ](i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

[X](ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

[ ](iii) 252.225-7020, Trade Agreements Certificate.

[ ]Use with Alternate I.

[ ](iv) 252.225-7031, Secondary Arab Boycott of Israel.

[ ](v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

[ ]Use with Alternate I.

[ ]Use with Alternate II.

[ ]Use with Alternate III.

[ ]Use with Alternate IV.

[ ]Use with Alternate V.

[ ] (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

[ ] (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at https://www.sam.gov After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are

current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
____	____	____	____
____	____	____	____
____	____	____	____
____	____	____	____
____	____	____	____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

INSTRUCTIONS TO OFFERORS

This Request for Quote (RFQ) is for an Indefinite Delivery, Indefinite Quantity (IDIQ) Contract to provide all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles required to perform mowing and other maintenance services at John W. Flannagan Dam & Reservoir, Haysi, Virginia, and North Fork of Pound Lake, Pound, Virginia, with the US Army Corps of Engineers, Huntington, District. All work shall be performed in strict compliance with the attached Performance Work Statement (PWS) and all other terms, clauses and conditions incorporated herein. This acquisition is for a base period of one (1) year and four (4) option periods of one (1) year each. Note: This solicitation contains an option clause to extend the awarded contract for up to four (4) additional option periods.

Simplified acquisition procedures for commercial services are being used in this procurement in accordance with RFO 12.201-1.

One award will be made from this RFQ. The Government intends to evaluate quotes and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint (See RFO 52.212-1(d)). It will be awarded according to a best value tradeoff process.

Basis of Award

The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The award will be based from the evaluation of factors found with 52.212- 2 EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. Please see provision for evaluation factors.

This procurement is 100 percent small business set aside, under NAICS code 561730 ($9.5 million average annual receipts for the previous three years).

The Method of Payment under this contract will be Electronic Funds Transfer (EFT) to a commercial bank account specified by the Contractor.

Quotes will not be accepted for quantities less than the quantities specified in the price breakout schedule. Failure to submit a unit price for all items listed (base period and option periods) will be considered as a material deviation from the requirements of the Request for Quote (RFQ) and the quote will be rejected.

IMPORTANT NOTICE: All offerors are required to have an active registration at http://www.SAM.gov at the time an offer or quotation is submitted, to include completion of electronic representations and certifications. Offers from vendors that are not active in SAM or that have not

completed the electronic representations and certifications at the time the offer is submitted will not be accepted. Vendors are highly encouraged to check their registration status and plan accordingly prior to submitting an offer.

Please direct all questions to Ellec T. Robinette at ellec.t.robinette@usace.army.mil and James M. Holstein at james.m.holstein@usace.army.mil. THE SOLICITATION AND RESULTING CONTRACT SHALL BE THE GOVERNING DOCUMENT IN ALL CASES.

CONTRACTOR FEEDBACK. Help us in BUILDING STRONG. Please provide us with your feedback, comments and recommendations for improvement by visiting our Interactive Customer Evaluation (ICE) Website at:

https://ice.disa.mil/index.cfm?fa=SiteSuggestions&site_id=856&dep=*DoD&suggestion_type=1

A Site Visit is strongly recommended but not mandatory. A site visit is set for 30 November 2026 at 11am ET. If you are unable to attend that specified date, please contact the Jaren Owens at; Jaren.S.Owens@usace.army.mil, or (276) 835-9544 X 8971 if you are interested in visiting the project site.

PLEASE READ - OFFER SUBMISSION INSTRUCTIONS:

ALL RESPONSES TO THIS ANNOUNCEMENT SHALL BE SUBMITTED ELECTRONICALLY. Hand carried delivery or USPS/UPS/FEDEX delivery of hard copies and or CD-ROMs are not authorized. Facsimile submission is not authorized. The Offeror's proposal must be received by the Government by the date/time specified in the solicitation. Electronic Proposal Submission is required through the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module https://piee.eb.mil/.

In order to submit an offer in the PIEE Solicitation Module, a vendor account must be created with the Proposal Manager Role. It is recommended that the user's e-mail address in PIEE match the email address on file in sam.gov.

Instructions on how to create a vendor account will be posted to sam.gov and can be located at:

https://dodprocurementtoolbox.com/cms/sites/default/files/resources/2021-08/PIEE%20Solicitation%20Module%20Vendor%20Access%20Instructions_0.pdf

Instructions on how to submit an offer will be posted to sam.gov and can be located at:

https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf

System for Award Management (SAM) solicitation notices will now include an accessible link of the posting in PIEE. Solicitation attachments will no longer by included in SAM.gov; however, they will be available for download in the Solicitation Module.

NOTE: Do NOT enter Privacy Act Data (Personal Identification Information (PII)) in the File Description.)

Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE Solicitation Module site. Do not assume that electronic submission will occur instantaneously. Large files (e.g. 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes--this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with RFO 52.212-1(c).

Electronic Files: Submission shall be in a searchable Adobe PDF format.

Should you require further assistance, the APEX Accelerators program is available. This program provides the education and training that all businesses need to become capable of participating in DoD procurements and it is FREE to use.

To find your local APEX Accelerator follow the link at: https://www.apexaccelerators.us/#/

In accordance with 52.219-14, Limitations on Subcontracting (DEVIATION), by submission of an offer and execution of a contract, the Contractor agrees to comply with the limitations on subcontracting. To demonstrate compliance, the contractor shall submit the Post-Award Contractor's Limitations on Subcontracting Certification to the Contracting Officer or Contracting Officer's Representation (COR) if one has been appointed. For contracts with a period of performance lasting less than 12 months, the contractor shall submit the Certification at the end of the performance period. For contracts with a period of performance lasting more than 12 months, the contractor shall submit the Certification at the one-year anniversary of contract award and then annually thereafter until the end of the performance period. For contracts with option years, the contractor shall submit the Certification at the end of the base year and then at the end of each subsequent option year.

*** END OF NARRATIVE 1 ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		

52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.252-1	Solicitation Provisions Incorporated by Reference.	1998-02		

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and

provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

https://acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52_____
[Insert one or more Internet addresses]

(End of provision)

52.252-5	Authorized Deviations in Provisions.	2020-11

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation[insert regulation name](48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section M - Evaluation Factors for Award

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Tailored)	2026-02		

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Evaluation factors are listed in descending order of importance. Evaluation factor A is the most important.

Evaluation factors B is the second most important. Evaluation factor C is significantly less important. Thus, price is not expected to be the controlling factor in the selection of the offerors for this SATOC award.

However, as the evaluated merit of competing technical quotes becomes more equal, total price and other price factors will become more important in the selection. Total price and other price factors could become the deciding factor for selection, depending upon whether the quote is the most advantageous to the Government and is determined to be worth the cost differential, if any. Non-price factors will be evaluated by the contracting officer and a technical representative from the John W. Flannagan Dam & Reservoir and North Fork of Pound River Lake Projects.

Factor A: Past Performance

Past Performance will be evaluated for management, quality, recency, relevancy of similar service/support, complexity, dollar value, and contract type.

All pertinent experience should be included. However, as a minimum, the following information must be provided:

Provide experience of relevant projects, current or completed within the past five years from the solicitation issue date that best demonstrates your experience with this type of work; include dates, location, types of contracts, dollar values, and a description of the work. Experience as a prime contractor and as a subcontractor will be considered. The following information shall be provided for each project:

- Project Title, Location, and Contract Number/Unique Identifier

- Dates of completed projects.

- For projects that are not yet complete, provide description of work remaining to be completed.

- Scope of the project (Dollar Value)

- Portion and percentage of work that was self-performed.

- Any applicable additional consideration factors

- At least one reference for all the experience identified for Factor A. Reference information should include owner's name, point of contact, telephone number, and email address.

NOTE: The Past Performance Questionnaire (PPQ) included in this solicitation may be utilized by the offeror for the purpose of receiving performance evaluations from clients on current or past projects. The offeror should include completed PPQs with their quote. Ensure correct phone numbers and email addresses are provided for the client point of contact and that the PPQ is signed by a representative of the project. Any PPQ's submitted without a project representative signature will not be considered as a valid reference of past performance.

If the offeror is unable to obtain a completed PPQ from a client for work performed on project(s) before the quotation closing date, the offeror should complete the first page of the PPQ and submit it with the proposal. Offerors should follow up with clients to ensure timely return of questionnaires. Upon request of the client, questionnaires may be submitted directly to both the Contract Specialist and Contracting Officer identified on the first page of the solicitation prior to the proposal closing date. Offerors shall not incorporate by reference into their quote any PPQs previously submitted for other solicitations. However, this does not preclude the Government from utilizing previously submitted PPQ information in the past performance/experience evaluation.

Offerors should also include performance recognition documents received within the last 5 years such as awards, award fee determinations, customer letters of commendation, and any other forms of performance recognition.

In addition to the above, the Government may review and use data obtained from other sources for evaluating past performance. Other sources may include, but are not limited to, past performance/experience information retrieved through Contractor Performance Assessment Reporting System (CPARS), using all CAGE/UEI numbers of team members (partnership, joint venture, teaming arrangement, or parent company/subsidiary/affiliate) identified in the offeror's proposal, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance/experience information rests with the Offeror.

Factor B: Technical Capability

The technical capability evaluation is based on how well the proposed products or services meet the Government's requirement. This factor will be evaluated by the quality, quantity and relevancy of equipment and personnel.

Provide the number of pieces of each type of equipment that will be used to complete the work of this contract. Include year, make, model, condition (including approximate number of hours), and safety features (i.e. rollover protection, seat belts, etc.). Also include whether each piece of equipment is currently owned, rented, or borrowed.

Provide a statement describing your equipment preventative and breakdown maintenance program. Include warranty information terms and conditions and describe your plan for acquiring replacement equipment should it become necessary due to breakdowns of existing equipment.

Submit an organization chart with names and position description of all personnel (i.e. contract manager, site supervisor, quality control inspector, maintenance mechanic, equipment operator, etc). Include roles and responsibilities of personnel to be utilized for this contract. Specify which of the positions in the organizational chart will be certified in CPR/First Aid. Specify which of the positions in the organization chart will have Site Safety Health Officer (SSHO) certification during time of contract.

Factor C: Price

Price will be evaluated for the purpose of determining the reasonableness and completeness of prices offered. Total price and price factors may become the deciding factor for selection, depending upon whether the most acceptable technical quote is determined to be worth the

price differential, if any. The price will be evaluated on base proposal/quote plus all options. The price will be reviewed by the Contracting Officer for fairness and reasonableness based upon competitive quotations.

Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

FAR 52.217-8, Option to Extend Services is included in this solicitation and any resultant contract. The rates to be used during the continued performance of any services will be the rates in effect at the time of the extension.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)